

CHARLIE TINKER, Individually and as Executor
of the ESTATE OF THELMA TINKER, Deceased,
and DENISE HOUCK, MONICA RUSSELL, BRIAN
TINKER, AND CHERI KALILIKANI, Each Individually

PLAINTIFFS

v.

UofL HEALTH – LOUISVILLE, INC. d/b/a UofL HEALTH;
UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.;
ERICA GETTIS, D.O. and ROBERT ARIA, M.D.

DEFENDANTS

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**DEFENDANTS UofL HEALTH – LOUISVILLE, INC. AND UNIVERSITY OF
LOUISVILLE PHYSICIANS, INC.’S ANSWER TO PLAINTIFFS’ COMPLAINT**

Defendants, UofL Health – Louisville, Inc. and University of Louisville Physicians, Inc.,
by counsel, and for their Answer to Plaintiffs’ Complaint, state as follows:

FIRST DEFENSE

The Plaintiffs’ Complaint fails to state claims upon which relief can be granted.

SECOND DEFENSE

Plaintiffs’ Civil Summons identifies “UofLHealth-Louisville, Inc.” and the Complaint identifies “UofLHealth-Louisville, Inc. d/b/a UofLHealth” as a Defendant in this matter. UofLHealth is not a d/b/a for UofLHealth-Louisville, Inc. To the extent Plaintiffs were attempting to name “UofLHealth” as an assumed name of “UofLHealth-Louisville, Inc.,” that entity has not been properly named or served and no response is required on behalf of that entity, as it is not before the Court. To the extent a response is deemed required, all allegations are denied and defenses are preserved.

THIRD DEFENSE

Without waiving its denial of liability to the Plaintiffs, the Defendants states that the Plaintiffs' injuries and damages may have been caused in whole or in part by the acts, omissions and/or negligence of other persons and/or third parties not under the direction and control of the Defendants, and said acts, omissions or negligence constitute either a complete or partial bar to recovery herein and the Defendants are, or may be entitled to, contribution, indemnity, and/or an instruction permitting the jury to apportion fault to other persons or parties.

FOURTH DEFENSE

Without waiving its denial of liability to the Plaintiffs, the Defendants state that any injuries and damages to the Plaintiffs may have resulted in whole or in part from intervening acts and/or superseding causes over which the Defendants had no control or for which the Defendants had no responsibility or liability.

FIFTH DEFENSE

Without waiving its denial of liability to the Plaintiffs, the Defendants state that the Plaintiffs have failed to mitigate their damages.

SIXTH DEFENSE

The Plaintiffs' claims for joint and several liability, pre-judgement interest, attorneys' fees, and costs fails to state a claim upon which relief may be granted.

SEVENTH DEFENSE

The Defendants provisionally plead as affirmative defenses those defenses of Kentucky Civil Rules 8.03 and 12.02, as though fully stated herein, said defenses' applicability to be determined during discovery, and reserves the right to reassert all answers herein, whether

affirmative or otherwise, about which it presently lacks sufficient knowledge or information but which may become available during the course of this litigation through discovery or other means.

EIGHTH DEFENSE

Without waiving its denial of liability to the Plaintiffs, the Defendants state that at all times they met the applicable standard of care.

NINTH DEFENSE

The Plaintiffs' Complaint fails to set for "a short and plain statement of the claim showing that the pleader is entitled to relief" pursuant to CR 8.01(1)(a).

TENTH DEFENSE

Except as affirmatively admitted, every allegation of the Plaintiffs' Complaint is denied, including those in the prayer for relief.

ELEVENTH DEFENSE

Without waiving its denial of liability to the Plaintiffs, the Defendants states that the Plaintiffs have failed to plead allegations sufficient to justify an award of punitive, or exemplary, damages or for gross negligence.

TWELFTH DEFENSE

The claims of the Plaintiffs for punitive damages or for gross negligence against the Defendants should be dismissed because any award of punitive damages without bifurcating the trial and trying all punitive damages issues separately, if, and only if, liability on the merits has been found would violate the Defendants' due process rights guaranteed by the Fourteenth Amendment of the United States Constitution and the due process provisions of the Constitutions of the United States and the Commonwealth of Kentucky.

THIRTEENTH DEFENSE

The claims of the Plaintiffs for punitive damages or for gross negligence against the Defendants should be dismissed because an award of punitive damages under Kentucky law, which is not subject to a predetermined limit on the amount of punitive damages that a jury may impose, would violate the Defendants' due process rights guaranteed by the Constitutions of the United States and the Commonwealth of Kentucky and would violate the excessive fines provision of said Constitutions.

FOURTEENTH DEFENSE

The Plaintiffs' claims for punitive damages or for gross negligence against the Defendants should be dismissed as being in violation of the United States Constitution, including but not limited to the Fifth and Eighth Amendments, as applied to the states through the Fourteenth Amendment of the United States Constitution.

FIFTEENTH DEFENSE

The claims of the Plaintiffs for punitive damages or for gross negligence against the Defendants should be dismissed because a jury, under Kentucky law:

- a. is not provided standards of sufficient clarity for determining the appropriateness, and the appropriate size, of a punitive damages award;
- b. is not adequately instructed on the limits of punitive damages imposed by the applicable principles of deterrence and punishment;
- c. is not expressly prohibited from awarding punitive damages, or determining the amount of an award of punitive damages, in whole or in part, on the basis of invidious discriminatory characteristics, including the residence and wealth of the Defendants;

is permitted to award punitive damages under a standard for determining liability for punitive damages that is vague and arbitrary and does not define with sufficient clarity the conduct or mental state that makes punitive damages permissible, and that any injuries and damages of which the Plaintiffs complain may have been caused and brought about by a pre-existing condition of the Plaintiffs which was neither caused by nor aggravated in any way by the Defendants, and said pre-existing condition constitutes either a complete or partial bar to recovery.

SIXTEENTH DEFENSE

Plaintiffs' claim is barred by the applicable statute of limitations.

SEVENTEENTH DEFENSE

The Defendants has not knowingly or intentionally waived any applicable defenses and reserve the right to amend this Answer to raise any additional defenses, affirmative or otherwise, that become available during the course of this action.

EIGHTEENTH DEFENSE

1. Defendants are without sufficient information to form a belief as to the truth of the allegations contained in Paragraphs 1, 2, 3, 4, 5, 6, 7, 8, 20, 21, 22, and 23 of Plaintiffs' Complaint and therefore deny same.

2. The allegations contained in Paragraphs 9, 10, 11, 12, 14, 15, 16, 17, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 42, 43, 45, 46, 48, 49, 51, 52, 54, 55, 56, 57, and 58 of Plaintiffs' Complaint are denied.

3. The allegations contained in Paragraphs 13 of Plaintiffs' Complaint do not pertain to this Defendant and as such no response is required. To the extent a response is deemed required, the allegations contained in these Paragraphs are denied.

4. The allegations contained in Paragraph 18 of Plaintiffs' Complaint set forth legal conclusions to which no response is required. To the extent a response is deemed required, the allegations contained in these Paragraphs are denied.

5. With respect to the allegations contained in Paragraph 19 of Plaintiffs' Complaint, Defendants admit that there is a Certificate of Merit attached to Plaintiffs' Complaint, but deny the allegations contained therein.

6. With respect to Paragraph 41, 44, 47, 50, 53 of Plaintiffs' Complaint, Defendants adopt and incorporate their answers and responses to the preceding paragraphs.

WHEREFORE, Defendants UofL Health – Louisville, Inc. and University of Louisville Physicians, Inc. demand as follows:

1. That the Complaint be dismissed with prejudice;
 2. For costs herein expended;
 3. A jury trial, should one be necessary;
 4. For leave to file an amended pleading upon completion of discovery or as justice requires;
- and
5. All other appropriate relief to which it may now or hereafter appear to be entitled.

Respectfully submitted,

THOMPSON MILLER & SIMPSON PLC

/s/ Eleanor M. B. Davis

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing has been served via the Court's electronic filing system and/or email this 12th day of May, 2025 upon the following:

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